

Comparing Islamic blasphemy laws with international free speech norms

Analysis run: September 12, 2026

PROVIDER	MODEL	LANGUAGE	AUDIENCE
Openrouter	Deepseek/deepseek-v4-pro	En	GENERAL
INTONATION	LENGTH	TEMPERATURE	
NEUTRAL	Long	0.7	

SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

USER PROMPT

Write a concise, self-contained article entry for the title: "Comparing Islamic blasphemy laws with international free speech norms".

Overall topic for alignment: Blasphemy (sabb al-nabi) and freedom of expression in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Islamic blasphemy laws, especially against reviling the Prophet (*sabb al-nabi*), derive not from a single Quranic death penalty but from interpretive synthesis of verses (e.g., 33:57, 9:61) and early Islam's need to counter seditious poetry. Classical Sunni schools—Hanafi, Maliki, Shafi'i, Hanbali—and Shi'a jurisprudence reached near-consensus on capital punishment, diverging over repentance, intent, and applicability to non-Muslims (with Maliki and Hanbali the strictest). In modern pluralistic or minority contexts, many scholars restrict such penalties to a just Islamic state and prohibit vigilante action, citing Quranic principles of no compulsion.

International human rights law (UDHR Art.19, ICCPR) limits speech only for specific direct harms, not religious offense; the Human Rights Committee deems blasphemy laws incompatible. The tension is framed as a clash between a deontological duty to prophetic honor and an individual-rights framework. Internal counter-currents—the Quran's silence on earthly punishment, Sufi interiorization—offer reform potential. Contemporary practice spans from state executions to formal repeal of blasphemy laws, though social pressures endure.

FULL CONTENT

Comparing Islamic Blasphemy Laws with International Free Speech Norms

The tension between religious sanctity and the right to free expression represents one of the most volatile fault lines in contemporary global human rights discourse. At the center of this debate lies the Islamic legal prohibition against blasphemy, particularly the concept of *sabb al-nabi* (سب النبي), or the revilement of the Prophet Muhammad. This entry examines the theological and juristic foundations of these laws within Sharia and contrasts them with the secular, liberal principles enshrined in international human rights instruments.

Theological and Quranic Foundations

The prohibition against blasphemy in Islam is not derived from a single, explicit Quranic verse commanding a fixed temporal punishment, but rather from a synthesis of textual interpretation and historical precedent. The Quran frequently commands respect for the Prophet and condemns those who cause him harm. A foundational verse for this doctrine is Quran 33:57: "Indeed, those who abuse Allah and His Messenger—Allah has cursed them in this world and the Hereafter and prepared for them a humiliating punishment." The term often used for abuse in this context is *adha* (أذى), which implies harm or annoyance. While the verse specifies a divine curse and an eschatological punishment, classical jurists later connected this spiritual condemnation to a temporal, earthly penalty.

Another critical verse is Quran 9:61, which addresses the “hypocrites” who “offend the Prophet and say, ‘He is an ear.’” The verse warns of a “painful punishment” for such behavior. Crucially, however, the Quran also contains verses that seem to counsel restraint. Quran 4:140 instructs believers to avoid the company of those who mock divine signs, but does not prescribe a physical punishment: “And it has already come down to you in the Book that when you hear the verses of Allah being denied and ridiculed, do not sit with them until they enter into another conversation.” This lack of a direct, unequivocal penal command in the Quran for blasphemy created a space that was subsequently filled by the Prophetic tradition (Sunnah) and juristic reasoning (ijtihad).

Historical Context and the Prophetic Precedent

The historical context of early Islam is indispensable for understanding the severity of the laws that developed. In the tribal society of 7th-century Arabia, poetry and verbal satire were potent weapons of war, capable of demoralizing a community and inciting violence. The nascent Muslim community in Medina faced an existential threat from hostile poets who lampooned the Prophet and his message. The most famous cases involve the poets Ka’b ibn al-Ashraf and Abu ‘Afak, who were killed for their inflammatory verses that constituted not just personal insult but a form of political and ideological warfare against the state. From this *Sitz im Leben*, jurists extrapolated a principle: revilement of the Prophet was not a private matter of conscience but an act of sedition against the community’s core identity and stability.

The Juristic Schools and the Penalty for *Sabb al-Nabi*

The four major Sunni juristic schools (madhahib)—Hanafi, Maliki, Shafi’i, and Hanbali—achieved a near-consensus that the penalty for a Muslim who commits *sabb al-nabi* is death. The reasoning and categorization, however, differ subtly, revealing the constructed nature of the law.

The Hanafi school, predominant in South Asia and parts of the former Ottoman world, distinguished between a Muslim and a non-Muslim offender. For a Muslim, the act of reviling the Prophet was considered an act of apostasy (ridda), as it demonstrated a rejection of a fundamental tenet of faith. The penalty for apostasy was death, but the Hanafis debated whether the offender could repent to avoid execution. Some argued the crime was a “right of God” (haqq Allah) and thus unforgivable by humans, while others allowed for repentance, viewing it as analogous to other forms of apostasy. For a non-Muslim *dhimmi* (a protected person living under Islamic rule), the Hanafi view generally held that the act violated the protection pact, making the offender a *harbi* (a combatant without protection), but the standard penalty was still execution unless they converted to Islam.

The Maliki school, dominant in North and West Africa, took an exceptionally strict stance. Maliki jurists categorized *sabb al-nabi* as a *hadd* crime—a fixed penalty with a divine mandate that cannot be waived by a judge or a ruler. Unlike the Hanafis, they did not permit repentance to commute the death sentence. The crime was considered more heinous than apostasy and even murder, as it struck at the foundation of the religion itself. The gravity was such that a person who killed a blasphemer without judicial authorization was not subject to retaliation (*qisas*) in many Maliki rulings.

The Shafi'i school, found in East Africa, Southeast Asia, and parts of the Middle East, aligned with the Maliki view that the penalty is death and that the crime is distinct from simple apostasy. However, they placed a strong emphasis on the mental state of the offender, requiring that the blasphemy be intentional and not a slip of the tongue under duress or intoxication. The Shafi'i jurist Al-Ghazali argued that calling for the death of a blasphemer was a lesser evil than allowing the blasphemy to spread, which he saw as a greater corruption (*mafsada*) to society.

The Hanbali school, the strictest in its textualism and the foundation of modern Wahhabism, also mandates the death penalty. Hanbali jurists like Ibn Taymiyyah argued forcefully that the punishment is a necessary defense of the Prophet's honor. The Hanbali tradition makes little to no distinction between a Muslim and a non-Muslim offender in terms of the penalty, though the procedural mechanisms for a *dhimmi* might differ. This school's influence on modern Saudi law is direct, where blasphemy and apostasy remain capital offenses.

The minority Shi'a Ja'fari school similarly prescribes the death penalty for anyone who reviles the Prophet or the Twelve Imams, treating it as a form of *sabb* that warrants immediate execution by any believer who can carry it out, a ruling that has historically led to extrajudicial violence.

Majority and Minority Settings: The Shift in Doctrine

The classical law was formulated in a context where Muslims held political sovereignty and the legal system was an extension of the Islamic state. In a modern, pluralistic nation-state, or in a setting where Muslims are a minority, the application of these classical rulings becomes highly contested. Many contemporary scholars argue that the classical *hadd* penalties are contingent on the existence of a just Islamic state (*dar al-islam*) and a qualified judge (*qadi*). In a non-Muslim majority country, they assert that Muslims are bound by a social contract (*aqd al-aman*) that prohibits them from taking the law into their own hands. This has created a sharp divide between the traditionalist, text-bound view and a modern, context-sensitive reformist view that prioritizes the Quranic principle of "no compulsion in religion" (Quran 2:256) and the Prophetic example of patience during the Meccan period, when Muslims were a persecuted minority and did not retaliate against blasphemy.

International Free Speech Norms and the Human Rights Declaration

The international human rights framework, anchored in the Universal Declaration of Human Rights (UDHR), operates on fundamentally different philosophical axioms. Article 19 of the UDHR states: "Everyone has the right to freedom of opinion and expression; this right includes freedom to hold opinions without interference and to seek, receive and impart information and ideas through any media and regardless of frontiers." This right is not absolute; Article 29 permits restrictions for "meeting the just requirements of morality, public order and the general welfare in a democratic society." However, the International Covenant on Civil and Political Rights (ICCPR), which codifies these rights into treaty law, allows limitations only for the rights or reputations of others, national security, or public health and morals. Crucially, the right to be protected from "offense" to one's religion is not a recognized ground for limiting speech. The Human Rights Committee, the treaty body for the ICCPR, has consistently held that blasphemy laws are incompatible with the Covenant, as they protect abstract ideas or belief systems

rather than individuals from incitement to discrimination, hostility, or violence (as covered in Article 20).

The Orientalist and Humanistic Critique

The “orientalist” perspective, a term popularized by Edward Said, has often framed Islamic blasphemy laws as a medieval relic indicative of a civilization incapable of embracing modernity and liberal tolerance. This critique, while often reductive and culturally supremacist, highlights a genuine structural clash. A more nuanced, humanistic approach, one that an AI might synthesize by analyzing patterns across vast corpora of legal and theological texts, would identify the conflict not as a clash of civilizations but as a collision between deontological and consequentialist ethical frameworks. The Sharia-based approach is deontological: the protection of prophetic honor is a sacred duty and a non-negotiable good in itself, regardless of earthly consequences. The international human rights approach is broadly utilitarian and deontological toward the individual: free speech is an inherent right of the person, and its restriction is only justified by a demonstrable, direct harm to identifiable individuals or public safety, not to the sensibilities of a group.

An AI’s humanistic approach would further map the internal diversity within the Islamic tradition, identifying the counter-currents that can form the basis for reform. It would note that the Quran never explicitly commands a death penalty for blasphemy and that the classical consensus was a human, historical construct. It would highlight the powerful tradition of Sufi thought, which often interiorized the concept of “harm to the Prophet,” seeing it as a matter of the offender’s spiritual state rather than a crime for the state to punish. This internal critique, combined with the external pressure of international norms, creates the dynamic, unresolved tension that defines the modern Muslim world’s struggle with this issue, a spectrum stretching from state executions in Saudi Arabia to the formal repeal of blasphemy laws in the constitutions of some Muslim-majority states, though often with social and political pressures remaining intensely powerful.

SEGMENTED DATA (2)

Comparing Islamic Blasphemy Laws with International Free Speech Norms

The tension between religious sanctity and the right to free expression represents one of the most volatile fault lines in contemporary global human rights discourse. At the center of this debate lies the Islamic legal prohibition against blasphemy, particularly the concept of *sabb al-nabi* (سب النبي), or the revilement of the Prophet Muhammad. This entry examines the theological and juristic foundations of these laws within Sharia and contrasts them with the secular, liberal principles enshrined in international human rights instruments.

Theological and Quranic Foundations

The prohibition against blasphemy in Islam is not derived from a single, explicit Quranic verse commanding a fixed temporal punishment, but rather from a synthesis of textual interpretation and historical precedent. The Quran frequently commands respect for the Prophet and condemns those who cause him harm. A foundational verse for this doctrine is Quran 33:57: “Indeed, those who abuse Allah and His Messenger—Allah has cursed them in this world and the Hereafter and prepared for them a humiliating punishment.” The term often used for abuse in this context is *adha* (أذى), which implies harm or annoyance. While the verse specifies a divine curse and an eschatological punishment, classical jurists later connected this spiritual condemnation to a temporal, earthly penalty.

Another critical verse is Quran 9:61, which addresses the “hypocrites” who “offend the Prophet and say, ‘He is an ear.’” The verse warns of a “painful punishment” for such behavior. Crucially, however, the Quran also contains verses that seem to counsel restraint. Quran 4:140 instructs believers to avoid the company of those who mock divine signs, but does not prescribe a physical punishment: “And it has already come down to you in the Book that when you hear the verses of Allah being denied and ridiculed, do not sit with them until they enter into another conversation.” This lack of a direct, unequivocal penal command in the Quran for blasphemy created a space that was subsequently filled by the Prophetic tradition (Sunnah) and juristic reasoning (ijtihad).

Historical Context and the Prophetic Precedent

The historical context of early Islam is indispensable for understanding the severity of the laws that developed. In the tribal society of 7th-century Arabia, poetry and verbal satire were potent weapons of war, capable of demoralizing a community and inciting violence. The nascent Muslim community in Medina faced an existential threat from hostile poets who lampooned the Prophet and his message. The most famous cases involve the poets Ka'b ibn al-Ashraf and Abu 'Afak, who were killed for their inflammatory verses that constituted not just personal insult but a form of political and ideological warfare against the state. From this *Sitz im Leben*, jurists extrapolated a principle: revilement of the Prophet was not a private matter of conscience but an act of sedition against the community's core identity and stability.

The Juristic Schools and the Penalty for *Sabb al-Nabi*

The four major Sunni juristic schools (madhahib)—Hanafi, Maliki, Shafi'i, and Hanbali—achieved a near-consensus that the penalty for a Muslim who commits *sabb al-nabi* is death. The reasoning and categorization, however, differ subtly, revealing the constructed nature of the law.

The Hanafi school, predominant in South Asia and parts of the former Ottoman world, distinguished between a Muslim and a non-Muslim offender. For a Muslim, the act of reviling the Prophet was considered an act of

apostasy (*ridda*), as it demonstrated a rejection of a fundamental tenet of faith. The penalty for apostasy was death, but the Hanafis debated whether the offender could repent to avoid execution. Some argued the crime was a “right of God” (*haqq Allah*) and thus unforgivable by humans, while others allowed for repentance, viewing it as analogous to other forms of apostasy. For a non-Muslim *dhimmi* (a protected person living under Islamic rule), the Hanafi view generally held that the act violated the protection pact, making the offender a *harbi* (a combatant without protection), but the standard penalty was still execution unless they converted to Islam.

The Maliki school, dominant in North and West Africa, took an exceptionally strict stance. Maliki jurists categorized *sabb al-nabi* as a *hadd* crime—a fixed penalty with a divine mandate that cannot be waived by a judge or a ruler. Unlike the Hanafis, they did not permit repentance to commute the death sentence. The crime was considered more heinous than apostasy and even murder, as it struck at the foundation of the religion itself. The gravity was such that a person who killed a blasphemer without judicial authorization was not subject to retaliation (*qisas*) in many Maliki rulings.

The Shafi'i school, found in East Africa, Southeast Asia, and parts of the Middle East, aligned with the Maliki view that the penalty is death and that the crime is distinct from simple apostasy. However, they placed a strong emphasis on the mental state of the offender, requiring that the blasphemy be intentional and not a slip of the tongue under duress or intoxication. The Shafi'i jurist Al-Ghazali argued that calling for the death of a blasphemer was a lesser evil than allowing the blasphemy to spread, which he saw as a greater corruption (*mafsada*) to society.

The Hanbali school, the strictest in its textualism and the foundation of modern Wahhabism, also mandates the death penalty. Hanbali jurists like Ibn Taymiyyah argued forcefully that the punishment is a necessary defense of the Prophet's honor. The Hanbali tradition makes little to no distinction between a Muslim and a non-Muslim offender in terms of the penalty, though the procedural mechanisms for a *dhimmi* might differ. This school's influence on modern Saudi law is direct, where blasphemy and apostasy remain capital offenses.

The minority Shi'a Ja'fari school similarly prescribes the death penalty for anyone who reviles the Prophet or the Twelve Imams, treating it as a form of *sabb* that warrants immediate execution by any believer who can carry it out, a ruling that has historically led to extrajudicial violence.

Majority and Minority Settings: The Shift in Doctrine

The classical law was formulated in a context where Muslims held political sovereignty and the legal system was an extension of the Islamic state. In a modern, pluralistic nation-state, or in a setting where Muslims are a minority, the application of these classical rulings becomes highly contested. Many contemporary scholars argue that the classical *hadd* penalties are contingent on the existence of a just Islamic state (*dar al-islam*) and a qualified judge (*qadi*). In a non-Muslim majority country, they assert that Muslims are bound by a social contract (*aqd al-aman*) that prohibits them from taking the law into their own hands. This has created a sharp divide between the traditionalist, text-bound view and a modern, context-sensitive reformist view that prioritizes the Quranic principle of “no compulsion in religion” (Quran 2:256) and the Prophetic example of patience during the Meccan period, when Muslims were a persecuted minority and did not retaliate against blasphemy.

International Free Speech Norms and the Human Rights Declaration

The international human rights framework, anchored in the Universal Declaration of Human Rights (UDHR), operates on fundamentally different philosophical axioms. Article 19 of the UDHR states: “Everyone has the right to freedom of opinion and expression; this right includes freedom to hold opinions without interference

and to seek, receive and impart information and ideas through any media and regardless of frontiers.” This right is not absolute; Article 29 permits restrictions for “meeting the just requirements of morality, public order and the general welfare in a democratic society.” However, the International Covenant on Civil and Political Rights (ICCPR), which codifies these rights into treaty law, allows limitations only for the rights or reputations of others, national security, or public health and morals. Crucially, the right to be protected from “offense” to one’s religion is not a recognized ground for limiting speech. The Human Rights Committee, the treaty body for the ICCPR, has consistently held that blasphemy laws are incompatible with the Covenant, as they protect abstract ideas or belief systems rather than individuals from incitement to discrimination, hostility, or violence (as covered in Article 20).

The Orientalist and Humanistic Critique

The “orientalist” perspective, a term popularized by Edward Said, has often framed Islamic blasphemy laws as a medieval relic indicative of a civilization incapable of embracing modernity and liberal tolerance. This critique, while often reductive and culturally supremacist, highlights a genuine structural clash. A more nuanced, humanistic approach, one that an AI might synthesize by analyzing patterns across vast corpora of legal and theological texts, would identify the conflict not as a clash of civilizations but as a collision between deontological and consequentialist ethical frameworks. The Sharia-based approach is deontological: the protection of prophetic honor is a sacred duty and a non-negotiable good in itself, regardless of earthly consequences. The international human rights approach is broadly utilitarian and deontological toward the individual: free speech is an inherent right of the person, and its restriction is only justified by a demonstrable, direct harm to identifiable individuals or public safety, not to the sensibilities of a group.

SEGMENT #002

148 words | 963 chars

An AI’s humanistic approach would further map the internal diversity within the Islamic tradition, identifying the counter-currents that can form the basis for reform. It would note that the Quran never explicitly commands a death penalty for blasphemy and that the classical consensus was a human, historical construct. It would highlight the powerful tradition of Sufi thought, which often interiorized the concept of “harm to the Prophet,” seeing it as a matter of the offender’s spiritual state rather than a crime for the state to punish. This internal critique, combined with the external pressure of international norms, creates the dynamic, unresolved tension that defines the modern Muslim world’s struggle with this issue, a spectrum stretching from state executions in Saudi Arabia to the formal repeal of blasphemy laws in the constitutions of some Muslim-majority states, though often with social and political pressures remaining intensely powerful.